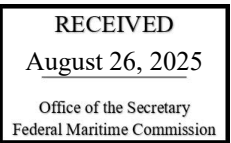


BEFORE THE FEDERAL MARITIME COMMISSION
Washington, D.C.



Case Caption

Complainant

SOUTHERN INTERNATIONAL CO., LTD

Headquarter (Old Address): Floor 4th, Building 772EFG Su Van Hanh, Ward 12, District 10, Ho Chi Minh City, Vietnam

Headquarter (New Address): Floor 4th, Building 772EFG Su Van Hanh, Hoa Hung Ward, Ho Chi Minh City, Vietnam

Representative Person: Mr. Nguyen Tien Phuong

Email: southern@southern.com.vn; nam@southern.com.vn

Phone: +84 775 192 912

v.

Docket No. 25-24

Respondent

DAYNAMEZ GROUP OF COMPANIES LLC

Headquarter: 4000 Legato Road, Suite 1100

Fairfax, VA 22033, USA

Representative Person: Mr. Zia Kamali

Email: kamali@daynamez.com

Phone: +1 (571) 287 9964

FORMAL COMPLAINT

SECTION 1 – THE COMPLAINANT

The complainant is SOUTHERN INTERNATIONAL COMPANY LIMITED (hereinafter referred to as "SIC"), a limited liability company duly organized and existing under the laws of Vietnam. SIC's primary business activity is providing international freight forwarding and logistics services, including ocean transportation. SIC's principal place of business is located at Floor 4th, Building 772EFG Su Van Hanh, Hoa Hung Ward, Ho Chi Minh City, Vietnam. SIC is licensed by the Federal Maritime Commission as an Ocean Transportation

Intermediary (OTI), Organization Number 033811. The legal representative of SIC is Mr. Nguyen Tien Phuong, holding the position of Director.
Phone: +84 775192912
Email: southern@southern.com.vn; nam@southern.com.vn

SECTION 2 – THE RESPONDENT

DAYNAMEZ GROUP OF COMPANIES LLC (hereinafter referred to as "Daynamez"). Daynamez is a limited liability company organized under the laws of Virginia, USA. Its principal place of business is located at 4000 Legato Road, Suite 1100, Fairfax, VA 22033. The phone number is +1 (571) 318-5515 and mobile number is +1 (571) 287-9964. The legal representative of Daynamez is Mr. Zia Kamali, holding the position of Director.
Email: kamali@daynamez.com

SECTION 3 – JURISDICTION AND LEGAL AUTHORITY

This Complaint is filed pursuant to the Shipping Act of 1984, as amended, particularly under 46 U.S.C. Chapter 411 (Ocean Transportation Intermediaries), which prohibits certain acts by common carriers, ocean freight forwarders, and non-vessel-operating common carriers (NVOCCs). The Federal Maritime Commission (FMC) has subject matter jurisdiction over this proceeding under 46 U.S.C. § 41301 and 46 CFR § 502.61(c).

This complaint alleges violations including, but not limited to, those set forth in:

- 46 U.S.C. § 41102(c): Prohibiting common carriers, ocean freight forwarders, and NVOCCs from engaging in any unjust or unreasonable practice in connection with a marine terminal operator or an ocean common carrier.
- 46 U.S.C. § 41104(2): Prohibiting common carriers from charging, demanding, collecting, or receiving greater, less, or different compensation for the transportation of property or for any service in connection with the transportation than the rates and charges that are in the tariffs or that would be assessed under the rules and regulations in those tariffs.
- 46 U.S.C. § 41104(3): Prohibiting common carriers from obtaining transportation at less than the applicable rates by false billing, false classification, false weighing, false report of weight, or any other unjust or unfair device or means.

- 46 U.S.C. § 41105(1): Prohibiting any person from knowingly and willfully, directly or indirectly, by any means whatsoever, obtaining or attempting to obtain ocean transportation for property at less than the rates or charges that would otherwise be applicable by false billing, false classification, false weighing, false report of weight, false statement, or any other unjust or unfair device or means.

SECTION 4 – THE MATTER COMPLAINED OF (ALLEGED FACTS)

- A. Between October and December 2023, Mr. Kamali and Daynamez established a working relationship with SIC by falsely claiming to have strong ties with a major logistics partner in Rotterdam. They asserted that this partner had close relationships with numerous shipping lines and, on this basis, promised to offer the most competitive market prices for shipments from Vietnam to global destinations, especially the US and Europe. Mr. Kamali and Daynamez repeatedly assured SIC that their partner's strength would enable them to secure the best rates, which fostered SIC's trust in the partnership. These claims were a deliberate strategy to persuade SIC to enter a long-term commitment.

Relying on these assurances, SIC subsequently entered into an Agency Agreement with Daynamez (Agency Agreement No. SIC/DNM-011224, dated December 1, 2023) to cooperate in providing sea transportation services. In this agreement, Daynamez explicitly committed to securing preferential booking rates from its agents, referred to as "booking partners." Later, in September 2024, Daynamez informed SIC that it had established agency relationships with Cargo Login LLC, Mahasagar Forwarders Pvt Ltd, and Kargosmart Global USA Inc ("Kargosmart US"). Daynamez claimed that these companies were the handling agents for its Rotterdam partner. According to Daynamez, these agents would always be prepared to provide bookings for SIC at Daynamez's request, but they would not be responsible for determining prices. In practice, however, the actual issuance of bookings and ocean bills of lading (B/Ls) for SIC's customers was carried out by the Vietnamese agents of Cargo Login and Kargosmart US - namely, Super Cargo Service Co., Ltd. ("Super Cargo") and Kargosmart Global Vietnam Co., Ltd. ("Kargosmart Vietnam").

The operational workflow devised by Daynamez stipulated that SIC was responsible for sourcing customers in Vietnam, collecting sea freight charges, and transferring these funds to Daynamez. The agreement

required SIC to transfer the sea freight within five working days of the vessel's departure from the Vietnamese port. In contrast, Daynamez was solely responsible for making payments to its Rotterdam partner. On behalf of Daynamez, SIC also paid local charges directly to the booking parties (Super Cargo and Kargosmart Vietnam) in Vietnam. To uphold its obligations, SIC diligently collected funds from its customers and promptly transferred the agreed-upon sea freight amounts to Daynamez for all shipments. In some cases, SIC even advanced substantial funds to Daynamez when customers had not yet paid, ensuring adherence to the payment terms.

Despite having received full payment from SIC for all shipments that had arrived at US ports, Daynamez frequently delayed its own payments to its partners. These delays adversely affected delivery schedules and damaged SIC's reputation. Although SIC repeatedly urged Daynamez to fulfill its obligations and facilitate cargo release, Daynamez instead shifted this responsibility back to SIC. Consequently, following repeated instructions from Daynamez and requests from Super Cargo, Cargo Login, Kargosmart Vietnam, and Kargosmart US, SIC had to advance numerous sea freight payments on Daynamez's behalf to these partners to ensure goods were cleared for its customers.

Around mid-October 2024, the situation escalated when Daynamez abruptly informed SIC that it was ceasing all payments to the booking parties, citing a depletion of operating funds. This announcement was made despite Daynamez having already received full payment from SIC for 558 containers shipped to the United States, a total of \$2,415,650.87 (see attached list). Daynamez then instructed its partners to direct all remaining payment responsibilities to SIC. As a direct result of Daynamez's failure to meet its obligations, numerous shipments to the United States and Europe were detained. This caused significant costs from shipping lines and severely damaged the reputation and credibility that SIC had built over 21 years of operation.

This unforeseen event plunged SIC into severe financial distress. Having already paid a substantial sum to Daynamez, funds that were clearly misappropriated, SIC was unable to help its customers make a second payment to resolve the cargo holds imposed by Super Cargo and Kargosmart Vietnam. As a result, both SIC and its customers became victims of Daynamez's actions. Ultimately, SIC's customers were forced to

make additional payments directly to the booking parties or shipping lines to secure the release of their goods.

- B. Following Daynamez's instructions and Super Cargo's request, SIC paid Super Cargo \$149,990 (equivalent to 3,793,247,100 VND) on October 9, 2024, on behalf of Daynamez. This payment was for the sea freight of 43 containers across 16 B/Ls (see attached list). However, despite receiving this payment and issuing an invoice to SIC, Super Cargo failed to release the 43 containers. SIC later learned from its customers that Super Cargo had contacted them directly, bypassing SIC, to demand a much larger additional freight payment to release the goods. In SIC's assessment, this new rate was substantially higher than the amount originally agreed upon between Daynamez and SIC.

During SIC's attempts to resolve the issue concerning the \$149,990 and the unreleased containers, Super Cargo brazenly stated that it had no freight service transaction with SIC. To this day, Super Cargo continues to hold the \$149,990 and has not returned it, even after the customers agreed to pay the inflated rate it demanded to retrieve their 43 containers from the United States.

- C. In a separate incident on October 14, 2024, one of SIC's customers needed the original Bill of Lading for shipment YMJAM493304131 to retrieve their goods. Although payment for this shipment had already been made to Daynamez, SIC acted on instructions from both Daynamez (who claimed its banking system was down) and Kargosmart Vietnam. To assist, SIC deposited \$50,000 (equivalent to 1,251,000,000 VND) with Kargosmart Vietnam to obtain the original master B/L. At the time of this transaction, Kargosmart Vietnam only requested the deposit and did not inform SIC of the outstanding sea freight amount that Daynamez owed for that specific B/L. After the deposit deadline passed, SIC repeatedly asked Kargosmart Vietnam for an update on Daynamez's debt to determine how the deposit should be handled, either to offset the debt or be refunded if the debt was cleared. To date, however, Kargosmart Vietnam has not cooperated in resolving the matter and continues to retain SIC's \$50,000.
- D. In summary, this series of events has resulted in severe and direct financial damages for SIC. The total amount misappropriated by Daynamez or withheld by its partners is \$2,615,640.87 USD.

This figure is composed of the following:

- \$2,415,650.87 in freight payments for 558 containers, which SIC had fully transferred to Daynamez but which Daynamez then failed to pay to the relevant carriers.
- \$149,990 paid by SIC to Super Cargo on Daynamez's behalf, which was never returned.
- A \$50,000 deposit paid to Kargosmart Vietnam to secure an original Bill of Lading, which has also been retained without resolution.

These financial losses, compounded by the significant damage to a reputation built over 21 years, have placed SIC in an extremely difficult position.

SECTION 5 – CAUSATION

The alleged illegal acts of the respondents have directly caused injury to the complainant. Specifically:

Daynamez's actions, including its misrepresentations and subsequent failure to remit payments to booking parties despite receiving funds from SIC, constitute an unjust or unfair device or means to obtain transportation at less than applicable rates, in violation of 46 U.S.C. § 41104(3). Furthermore, Daynamez's failure to uphold its contractual and operational obligations, leading to the holding of cargo, demonstrates a failure to establish, observe, and enforce just and reasonable regulations and practices, in violation of 46 U.S.C. § 41102(c).

These actions have directly resulted in significant financial losses for SIC and severe damage to its business reputation and customer relationships.

SECTION 6 – DAMAGES

SIC has incurred direct financial damages totaling USD 2,615,650.87, comprising:

- \$2,415,650.87 in freight payments for 558 containers, which SIC had fully transferred to Daynamez but which Daynamez then failed to pay to the relevant carriers.
- \$149,990 paid by SIC to Super Cargo on Daynamez's behalf, which was never returned.

- A \$50,000 deposit paid to Kargosmart Vietnam to secure an original Bill of Lading, which has also been retained without resolution.

Additionally, SIC has suffered substantial damage to its goodwill and reputation, built over 21 years of operation, due to the disruption of its services and the distress caused to its customers. SIC's customers were also forced to incur additional expenses to secure the release of their goods. Further consequential damages are expected due to loss of customer relationships, reputational harm, and potential legal liabilities, subject to ongoing quantification.

SECTION 7 – REQUEST FOR RELIEF

Complainant requests that Respondents be required to answer the charges made herein; that, after a hearing, the Commission order Respondents:

1. To cease and desist from violations of the Shipping Act;
2. To put in place lawful and reasonable practices;
3. To pay Complainant reparations for the unlawful conduct in the sum of USD 2,615,650.87, plus interest, attorney's fees, and any other sum the Commission determines to be proper;
4. To grant such further relief as the Commission determines to be proper.

The Commission is also requested to revoke or suspend OTI licenses of Respondents found in violation.

SECTION 8 – REQUEST FOR ORAL HEARING

Complaint is not requesting an oral hearing in this matter and submits this complaint for adjudication on the written record.

Respectfully submitted,



SOUTHERN INTERNATIONAL COMPANY LIMITED

Representative: Mr. Nguyen Tien Phuong

Address: 64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam

Phone: +84 775192912

Email: southern@southern.com.vn; nam@southern.com.vn

Date: August 15, 2025

**LIST OF ATTACHED DOCUMENTS PROVIDING TRANSACTIONS
BETWEEN SOUTHERN – DAYNAMEZ**

1. SOUTHERN'S LEGAL DOCUMENTS:
 - 1.1. CERTIFICATE OF BUSINESS REGISTRATION
2. RELATED DOCUMENTS BETWEEN SOUTHERN AND DAYNAMEZ:
 - 2.1. AGENCY AGREEMENT NO.: SIC/DNM-011224 DATE 01 DEC 2023
 - 2.2. EMAIL BETWEEN SOUTHERN AND DAYNAMEZ REGARDING PROFIT SHARE
3. LIST OF PAID CONTAINERS (558 CONTAINERS) THAT RELATED TO THIS CASE (BILL + BOOKING)
4. PAYMENT TO DAYNAMEZ FROM AUG TO OCT, 2024 – FOR SHIPMENTS RELATED TO THIS CASE